

We regularly work to provide updated information relating to the reformed Illegal Logging Prohibition Act 2012 and Illegal Logging Prohibition Rules 2024, which came into effect on 3 March 2025.

Here are answers to some frequently asked questions about Australia's illegal logging laws and the due diligence requirements for importers and processors.

The FAQs may reference several pieces of legislation, including:

- The [Illegal Logging Prohibition Act 2012](#) (Act)
- The [Illegal Logging Prohibition Amendment \(Strengthening Measures to Prevent Illegal Timber Trade\) Act 2024](#) (Amendment Act)
- The [Illegal Logging Prohibition Regulation 2012](#) (Regulation)
- The [Illegal Logging Prohibition Rules 2024](#) (Rules)

Further information on general and legislative requirements for [importers](#) and [processors](#) can be found on our webpages together with links to guidance material.

Illegal logging reforms

Yes. The Act has been amended by the Amendment Act to provide further measures to protect the Australian market from illegally logged timber and support sustainable and legal timber trade.

The Amendment Act received the Royal Assent on 17 September 2024 and amends the Act with effect from 3 March 2025.

The amended Act can be found on the [Federal Register of Legislation](#).

From 3 March 2025, the Rules will replace the existing Regulation and introduce changes to due diligence requirements for importing regulated timber products and processing raw logs (among other things).

From 3 March 2025 you will need to comply with the Rules (including the due diligence requirements set out in the Rules) in relation to regulated timber products to be imported and raw logs to be processed on or after that date. The replacement of the Regulation does not affect its previous operation, including requirements relating to due diligence and record keeping.

The department remains committed to supporting compliance within the regulated community with clear and accessible guidance. When undertaking assessments, the department works closely with entities to ensure a full understanding of their legislative requirements. We aim to facilitate long term, sustainable compliance.

The guidance material on our website is designed to help importers and processors to understand and meet their due diligence requirements. We continue to review common non-compliances and industry queries to refine our content and welcome further feedback on our guidance material.

We also continue to publish the illegal logging e-updates which provide guidance on the laws, a spotlight on international news related to illegal logging matters and information about upcoming events.

We encourage importers to review the content on our webpage and subscribing to our [illegal logging e-updates](#). If there are further questions, please [contact us](#).

Not at this stage.

From 3 March 2025, the Amendment Act introduced requirements for an importer to provide notice to the Secretary of the department of regulated timber products to be brought into Australia and unloaded at a landing place or port in Australia, and for a processor to give the Secretary notice of the processing of a raw log on or after a day prescribed in the rules. This requirement has not been switched on yet through a day being prescribed because it is intended that the notices be given by way of a new IT system, which is still being developed.

Therefore, importers and processors will not be required to provide these notices until the IT system is operational.

Importers and processors will be consulted on the development of the IT system and will be informed of when they will be required to start giving the notices.

Guidance material to assist you in meeting the notice requirements will be available once the relevant rules have been made.

From 3 March 2025 the department can use timber testing technologies to verify claims of species and origin of timber and timber products at the border and under a warrant.

We will provide more information on the proposed use of timber testing technologies as it becomes available.

Section 84A of the Act provides that the Secretary may publish certain information about criminal convictions, civil penalty orders and enforceable undertaking orders on the department's website.

The Secretary may publish the name of the person who has been convicted of the relevant offence, the name of the person who has been the subject of a civil penalty order and the name of the person who has been the subject of the enforceable undertaking order. The Secretary may also publish certain other details of the contravention or order.

For example, if a person has been convicted of an offence against subsection 12(1) or (2) (importing regulated timber products without complying with due diligence requirements for importing those regulated timber products) the Secretary may publish a description of the regulated timber product and details of the due diligence requirements that were not complied with.

It is intended that publication of convictions for offences against the Act, contraventions of civil penalty provisions and instances of non-compliance with due diligence requirements would only occur where non-compliance is repeated or very serious and where it is considered in the public interest to do so.

Such instances may be where a person has been convicted of the offence of importing illegally logged timber (s 8 of the Act) on several occasions, or has repeatedly failed to comply with the due diligence requirements for importing regulated timber products, without undertaking further checks or adjusting practices.

No.

With the exception of Country Specific Guidelines and State Specific Guidelines, all material published by the department prior to 3 March 2025 relating to the Illegal Logging Prohibition Regulation 2012 is no longer relevant and should not be relied on by businesses for their due diligence (processes or obligations). This includes all previous Illegal Logging Compliance Advice Notices, published as CANs, which will no longer apply to due diligence processes.

Due diligence for importers and processors

Generally, due diligence involves gathering information on the regulated timber product or raw log, assessing the risk that the product or raw log contains illegally logged timber, and mitigating that risk (if necessary).

See the [due diligence for importers](#) or [due diligence for processors](#) webpages for further information.

Yes, you must conduct due diligence in relation to each regulated timber product you wish to import or each raw log you wish to process.

Depending on the circumstances, the previous risk assessment pathway may be used for importers, as set out in section 8(10) of the Rules, and for processors, as set out in section 11(9) of the Rules.

See the [due diligence for importers](#) or [due diligence for processors](#) webpages for further information.

No.

Subsections 8(3) (importers) and 11(2) (processors), the information gathering provisions of the Rules are positive obligations on importer and processors.

These provisions require importers and processors to obtain as much information as reasonably practicable for each instance of import/processing. There is no obligation in s8(3) or s11(2) to verify or check whether the information obtained has changed since a previous consignment.

No. You still need to undertake all of the relevant due diligence steps listed on [due diligence for processors](#) or [due diligence for importers](#) webpage.

Yes.

However, if the regulated timber product you intend to import or the raw log you intend to process is a certified regulated timber product or a certified raw log, you may conduct your risk identification and assessment process using the risk identification and assessment process for certified regulated timber

products in subsection 8(5) of the Rules or the risk identification and assessment process for certified raw logs in subsection 11(4) of the Rules.

Certified timber products and certified raw logs are defined in subsections 8(4) and 11(3) of the Rules, respectively.

Yes. Even if you are certified, you will need to meet the due diligence requirements of the illegal logging legislation.

Due diligence is conducted based on the product/raw log, not the supplier or the importer/processor. Therefore, you must check that the product you are importing or log you are processing is certified.

The department acknowledges the robust due diligence processes of both FSC and PEFC; however, a Chain of Custody manual in and of itself is not sufficient to meet the due diligence obligations.

For compliance, a written system will be required that sets out the process by which the person will meet the due diligence requirements that are prescribed at Section 13A of the Act and sections 7 and 8 of the Rules for importers and Section 17A the Act and sections 10 and 11 of the Rules for processors.

The certified products pathway for risk assessment is found at sections 8(5) and 11(4) of the Rules for importers and processors respectively.

No. You do not have to submit your due diligence information to the department each time you import a regulated timber product or process domestically grown raw logs.

You must undertake your due diligence before you import regulated timber products or process raw logs and you must keep a written record of all your due diligence processes. When requested for compliance purposes, you must provide this information to the department.

Yes, unless your product is an exempt regulated timber product under s 6 of the Rules.

A regulated timber product is exempt where it is:

- imported as part of a consignment, if the total customs value of the regulated timber product/s in the consignment does not exceed \$1,000; or
- recycled material, entirely made from recycled material, or where all the timber and products derived from timber, included in the product are recycled material.

See [Regulated timber products](#) for more information.

If you are importing personal belongings (such as furniture from your overseas home) under the tariff code for personal effects, you do not need to do due diligence.

Learn more about [importing personal belongings](#).

If the regulated timber product you intend to purchase has already been imported into Australia, or the raw log has already been processed, you will not be required to conduct due diligence. You are only

required to do due diligence if you are the importer of a regulated timber product (that is not an exempt regulated timber product) or if you are processing a raw log from a tree grown in Australia.

Yes. Illegal logging can occur in any country. If the product is a regulated timber product, you need to do due diligence prior to importing the product (unless the product is prescribed as exempt).

While there are only isolated instances of illegal logging in Australia, Australia is not immune. You must still do due diligence prior to processing a raw log harvested from a tree grown in Australia.

Due diligence requirements – information gathering, risk assessment, risk mitigation and record keeping

The phrase ‘reasonably practicable’ is an objective test. What is reasonably practicable will depend on the circumstances.

Determining whether an importer or processor has met their obligation to obtain as much of the prescribed information as is reasonably practicable may involve considering factors such as:

- availability of the prescribed information at the relevant time;
- what information the importer or processor obtained;
- what steps were taken to obtain the prescribed information;
- further steps that could have been taken to obtain prescribed information;
- the importance of the information;
- whether the information relates to information already known by the importer or processor;
- the scale and sophistication of the importer’s or processor’s business; and
- complexity of the supply chain;
- time, expense and difficulty involved in obtaining the prescribed information.

Under the relevant legislation, an importer or processor is required to obtain all the information listed in subsections 8(3) or 11(2) of the Rules, as is reasonably practicable, and keep records of the information for a period of 5 years from the day the regulated timber product is imported or the raw log is processed. It may also be prudent to keep records of attempts to obtain the information, to demonstrate your attempt to comply with the information gathering requirements.

If the information cannot be gathered then this must be taken into consideration in the subsequent risk identification assessment stage of the due diligence process, and at the risk mitigation stage if the risk that the product is, is made from, or includes, illegally logged timber is not low. In practice the absence of information is likely to preclude a rating of low risk.

The Rules require that the identification and assessment of the risk must be to a reasonable standard.

Generally, what is ‘reasonable’ is considered by assessing what a reasonable person would have done in the importer’s or the processor’s circumstances. This is an objective test, which depends on the particular factual circumstances of the importer/ processor.

Digital and other scientific technical timber testing methods for timber identification are playing an increasingly important role in facilitating compliance with due diligence requirements under illegal timber trade laws in other countries.

The department recognises the value that timber testing may have in verifying species and the origin of timber and timber products. You may use these methods as part of your due diligence. However, it is your responsibility to ensure that any such technical solution is sufficiently robust to accurately assess illegal logging risk and that you comply with all the due diligence requirements in the legislation.

It is important to note that scientific timber testing is not a mandatory due diligence requirement. It is not to be utilised in lieu of prescribed due diligence requirements. Where utilised within, for example, risk mitigation processes, timber testing must be undertaken before the importation of the regulated timber product or the processing of the raw log, and be demonstrably associated to the product to be imported or the raw log to be processed.

While you may use AI tools to assist with your due diligence obligations, they cannot be used in isolation.

Using AI does not remove the requirement on you to comply with the prescribed obligations of the Rules.

Yes.

Controlled wood, FSC-Mix and FSC Recycled material are covered as eligible output claims in the Chain of Custody standard FSC-STD-40-004.

No.

Once the timber product/raw log has been determined to be certified in accordance with the relevant provisions in the Rules (s8(4) for importers/11(3) for processors), you only need to complete one risk assessment using the certified timber product/raw log pathway.

The risk assessment must consider all prescribed risk factors outlined in s8(5) or 11(4) and all known facts and circumstances for that specific timber product/raw log.

The presence of both PEFC and FSC claims does not mean you need to assess the product twice.

No.

An importer/processor is not required to hold a FSC or PEFC certification themselves to use the certified timber products/raw logs pathway.

Use of the certified timber products/raw logs pathway is depends on the product/raw log itself being certified, in accordance with section 8(4) or 11(3) of the Rules.

No.

The certified timber product pathway can only be used if the final product to be imported is certified.

It is not sufficient for individual components to be certified if the final product as a whole does not hold certification.

The risk assessment must be completed for the regulated timber product being imported into Australia, which is the final whole manufactured timber product.

When conducting the risk identification and assessment as part of your due diligence, you need to comply with all the requirements for identifying and assessing the risk in relation to certified or non-certified timber products or certified or non-certified raw logs.

When keeping records of your risk assessment, you must demonstrate that you considered each risk factor in your written identification and assessment of risk.

As part of the due diligence process, the Rules require importers and processors to identify and assess the risk that the product is, is made from, or includes, illegally logged timber, or identify and assess the risk that the raw log has been illegally logged (as the case may be).

To assist importers and processors understand how to identify and assess the relevant risk, the department has created a due diligence toolkit.

The toolkit provides guidance on the other due diligence requirements and the defined terms and concepts relevant to due diligence. The toolkit is also anticipated to be a resource for importers and processors in developing their due diligence systems for importing regulated timber products or processing raw logs, as the case may be.

You cannot solely rely upon the documents listed in the Country Specific Guideline (CSG) or State Specific Guideline (SSG) when conducting the risk identification and assessment process for non-certified regulated timber products or non-certified raw logs. You will have to meet all the requirements set out in the Rules in conducting the relevant risk identification and assessment.

Under the Rules, there is no longer a stand-alone CSG or SSG risk assessment method. However, CSGs and SSGs continue to have a role in the non-certified products pathway as one of several factors that you must consider when conducting your risk identification and assessment. As an importer, you are required to consider the CSG information if the CSG applies to the timber in the product, or the place in which the timber was harvested any CSG that relates to the timber that is, or the timber that is in, the regulated timber product. Similarly, as a processor, you are required to consider the SSG that relates to the raw logs.

Importers will also need to consider all the factors listed in subsection 8(6) of the Rules in conducting the risk identification and assessment step of the due diligence process for non-certified timber products.

Processors will need to consider all the other factors listed in subsection 11(5) of the Rules when conducting the risk identification and assessment step of the due diligence process for non-certified raw logs.

See [due diligence for importers](#) or [due diligence for processors](#) for more information.

As an importer of a non-certified regulated timber product, you are required to consider any CSG that relates to the timber that is, or the timber that is in, the product in identifying and assessing the risk that the product is, is made from, or includes, illegally logged timber.

Alternatively, as the processor of a non-certified raw log, you are required to consider any SSG that relates to the raw logs in identifying and assessing the risk that the raw log has been illegally logged.

As part of the risk identification and assessment process for non-certified regulated timber products, you must consider the governance arrangements for forest management in the area or country in which the regulated timber in the product was harvested.

The governance arrangements for forest management are the rules, policies and legislation which govern forest use, including harvesting in the particular area or country concerned.

Visit the [Resources for importers](#) page for further links to third party resources which may assist.

Yes, you may be able to use the repeat due diligence exception in s 8(10) of the Rules. However, you must still meet the following requirements:

- the regulated timber product that you wish to import must be the same as the earlier regulated timber product you imported (that is, both products must be either certified or non-certified regulated timber products); and
- you have obtained the following information for the product you wish to import, and that information is the same as the information as for the earlier product:
 - the description of the regulated timber product; and
 - the country and the area of the country in which the timber, or the timber in the product was harvested; and
 - the country in which the product was processed or manufactured (if applicable)
 - the name, address, trading name and business registration number (if any) of the supplier of the product; and
- you have:
 - considered whether, since you complied with the risk identification and assessment steps in relation to the import of the earlier product, there has been a significant change in circumstances that has increased the risk that the product you wish to import is, is made from, or includes, illegally logged timber; and
 - if you are satisfied that there has been no such significant change in circumstances, you have made a written record to this effect.

Yes, you may be able to use the repeat due diligence exception in s 11(9) of the Rules. However, you must still meet the following requirements:

- the raw logs that you wish to process must be the same as the earlier raw logs you processed (that is, both raw logs must be either certified or non-certified raw logs); and

- you have obtained the following information for the raw log you wish to process, and that information is the same as the information as for the earlier raw logs:
 - the description of the raw logs, including the common name and scientific name of the tree from which the raw logs were derived; and
 - the state or Territory, and the area in the State or Territory in which the raw logs were harvested; and
 - the name, address, trading name, ABN (if any) and ACN (if any) of the supplier of the raw logs; and
- you have:
 - considered whether, since you complied with the risk identification and assessment steps in relation to the processing of the earlier logs, there has been a significant change in circumstances that has increased the risk that the current logs are illegally logged; and
 - if you are satisfied that there has been no such significant change in circumstances, you have made a written record to this effect.

If any of the information about the current product has changed, the current product can no longer be considered the same product as the earlier product. As such, the repeat due diligence exception of the Rules cannot be applied to the current product. A new risk assessment against the tables (the current product) that is being imported will be required. A new risk assessment solely on the tabletops may only be undertaken where the tabletop was the earlier product and is also the current product that is being imported.

Where a composite product may be comprised of multiple timber species (and harvest locations), gathering information in accordance with subsection 8(3) of the Rules that covers all possible species and harvest locations in the timber product is considered robust due diligence.

The risk assessment must also consider all possible species and harvest locations that could be present in the composite product.

No.

Planning to purchase future products that are FSC or PEFC certified, or relying on a supplier who plans to become FSC/PEFC certified, is not acceptable risk mitigation. It does not address the risk that the current product could contain illegally logged timber.

Risk mitigation means taking active steps to reduce the risk for the product you are importing or processing in a way that is reasonable and proportionate to the identified risk.

In some cases, this may include sourcing a lower-risk regulated timber product/log or changing suppliers for the timber product/log in question.

If the risk cannot be mitigated through other measures, risk mitigation may involve not importing/processing the product/log.

Regulated timber products

Section 5 of the Rules prescribes the regulated timber products by reference to the tariff codes, including a description of each regulated timber product.

Australian Border Force also provides information on [tariff classification](#). Alternatively, if you use a customs broker, you may wish to contact them for this information.

If your product does not contain any timber or wood-fibre content (in any shape or form), then you do not need to do due diligence.

You do not need to do due diligence on wood, pulp or paper products that do not come within the definition of regulated timber product in section 5 of the Rules. This could include items such as wooden musical instruments and sporting equipment.

Yes. Unless it is an exempt regulated timber product, you still need to do due diligence on the timber contained in the product.

No. Regulated timber products with less than 5% wood content are not exempt from due diligence requirements.

If the timber product in question comes within the definition of regulated timber product in section 5 of the Rules, then the due diligence requirements apply to that regulated timber product unless otherwise exempt as per Section 6 of the Rules. This is regardless of the percentage of wood content in the regulated timber product.

Yes. If your composite product is prescribed as a regulated timber product under section 5 of the Rules, due diligence must be undertaken prior to import.

It is important to note that MDF and plywood are not common or species names of timber. MDF and plywood are typically comprised of one or multiple timber species.

When identifying and assessing the risk that the regulated timber product contains illegally logged timber, you will need to consider each of the timber species in the regulated timber product in order to identify and assess the risk that the regulated timber product is, is made from, or includes, illegally logged timber.

For more information on how to conduct due diligence, visit our [Due diligence for importers](#) webpage.

Compliance and enforcement

You can call the department's Redline on 1800 803 006 for a confidential discussion if you believe your supplier is dealing in illegally logged timber.

Alternatively, you can report suspected dealings in or undertakings of illegal logging activity via our [online reporting form](#). You can remain anonymous when reporting information using the online reporting form, but it can help an investigation if we can contact you to ask for more information.

To discuss compliance matters, you can email the Operational Intelligence and Coordination Branch at redline@aff.gov.au.

Definitions

As these terms under the Act and Rules all rely on the ordinary meaning of the word, it was not necessary to include definitions in the legislation.

Under the Act and Rules, processors of domestically grown raw logs need to conduct due diligence prior to processing.

The Macquarie Dictionary defines process as ‘to convert (an agricultural commodity) into marketable form by some special process; prepared or modified by an artificial process; to treat or prepare by some particular process, as in manufacturing.’ In the context of the Act, the department considers this means any activity that turns a raw log into something other than a raw log.

A raw log is a felled tree that has been bucked and delimbed. Therefore, while bucking and delimbing activities are not considered processing, any further activities would constitute processing for the purposes of the Act. For example, debarking processes are ‘processing’ for the purposes of the Act.

Under the Australia’s illegal logging laws, an importer is someone involved in importing products regulated under the Illegal Logging Prohibition Act 2012 into Australia. These products include illegally logged timber, things made from or including illegally logged timber and regulated timber products.

Illegal logging enquiries

Our website provides comprehensive guidance material, resources and answers to commonly asked questions to assist importers and processors understand their due diligence requirements and to comply with those requirements. If you have a question, we encourage you to first review the available guidance material. After doing so, if you have further questions, please get in contact with us:

- For questions about your legal responsibilities and due diligence requirements:
 - Illegal Logging Hotline 1800 657 313
 - illegallogging.complianceassessment@aff.gov.au
- For illegal logging policy matters and questions regarding guidance material:

The department provides information to assist you but please note that it does not constitute legal advice. Entities are encouraged to seek their own legal advice regarding compliance with the Illegal Logging legislation.